



POLICE DEPARTMENT

October 16, 2007

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Carlos Cruz
Tax Registry No. 920167
Transit District No. 2
Disciplinary Case No. 81665/06

The above-named member of the Department appeared before me on July 16, 2007, charged with the following:

1. Said Police Officer Carlos Cruz, assigned to Transit District No. 2, on or about June 1, 2005, while off duty, did engage in conduct prejudicial to the good order, efficiency and discipline of the Department in that he was engaged in an off-duty dispute with an individual known to the Department wherein he exited his vehicle and confronted the other driver. (*As amended*)

P.G. 202-17, Page 1, Paragraph 1 -- PATROL SUPERVISOR

The Department was represented by Beth Douglas, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge, and a stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty.

EVIDENCEThe Department's Case

The Department called Police Communications Technician Mary Johnson and Lieutenant Liam Ryan as witnesses. The Department offered the compact disk (CD) recording and SPRINT report of the 911 call of an anonymous eyewitness and the 911 call that the Respondent made at the time of the incident. The CD and SPRINT report were admitted into evidence as Departments Exhibits (DX) 1 & 1A respectively. The Department also offered the out-of-court statements made by the Complainant, [REDACTED] and the tape and transcript were admitted into evidence as DX 2 & 2A.

Police Communications Technician Mary Johnson

Johnson is a 14-year member of the Department currently assigned as a Tape Technician responsible for making duplicate copies of Department radio transmissions and 911 calls that are kept on file for 180 days before they are erased. She explained that once a request is made for a 911 radio transmission the information is located by researchers using the time and date of occurrence. She then explained that once the SPRINT is located, the information is imputed into the computer and sent to the Central Mass Storage System where the calls for a specified period of time are retrieved. In the instant case, a CD of the 911 calls (DX 1) was made which was identified by the preparer's initials; the date and location of the incident, tape room job number, and the date prepared. The Assistant Department Advocate showed the CD to Johnson who identified the preparer as Tape Technician Schoen. Both parties in this case stipulated to the authenticity and content of the CD which are the 911 calls from the Respondent and

an anonymous male caller. In addition, there are radio transmissions between the radio dispatcher and the responding units included on the CD.

Anonymous 911 Caller

The CD (DX 1) includes a 911 call that was placed by an anonymous male caller. The caller stated that as he was driving "in back of" two men, one in a U-Haul and one in a gold car, who had stopped and were out of their vehicles. The caller stated that he observed a "gentleman pull a gun on another gentleman" and further explained "the guy in the gold car" was a male Hispanic and was the one with the gun. The call was then disconnected.

Lieutenant Liam Ryan¹

Ryan, who is currently assigned to the 34 Precinct, testified that he was formerly assigned to the Patrol Borough Manhattan South Investigations Unit (PBMS-IU) in the rank of Sergeant. While at PBMS-IU, he explained that his duties were to investigate allegations of misconduct committed by members of the service. He stated that PBMS-IU received a call on June 1, 2005 from the Duty Inspector to respond to the 10 Precinct to investigate a traffic dispute involving an off-duty MOS. Ryan testified that he along with other members of the PBMS-IU, interviewed [REDACTED] the operator of the U-Haul truck and tape recorded the interview (DX 2). During the course of the interview, Ryan questioned [REDACTED] as to how the incident began. [REDACTED] stated that he was driving northbound on the West Side Highway when he accidentally cut off the Respondent and became "embroiled in some type of give and take." [REDACTED] added that the Respondent never pointed his firearm at him or felt threatened. He also

¹ Ryan was a Sergeant at the time of the interview. His name was misspelled in the transcript which was phonetically spelled out as Sgt. Lehmer.

acknowledged that the Respondent identified himself as a police officer and made a call to 911.

On cross-examination, Ryan acknowledged that [REDACTED] stated to responding Police that at no time did he feel threatened by the Respondent and further stated "you guys are lucky that you showed up when you did, because I was about to beat him up." [REDACTED]'s statements were corroborated during his interview with PBMS-IU. He continued to say that he only saw the Respondent's gun for "a few seconds" but is not sure where he put the gun after that.

Out of Court Interview of [REDACTED]

The Assistant Department Advocate informed the Court that she attempted to locate Mr. [REDACTED] for approximately two months but was unable reach him. On June 13, 2007, Radames Padilla from the Department's Litigation Support Unit spoke to Mr. [REDACTED] [REDACTED]'s father by telephone, and was informed that [REDACTED] was not at home. Several messages were subsequently left for [REDACTED] to contact the assigned attorney regarding this case. On June 22, 2007, Padilla was present at [REDACTED]'s home and handed a subpoena to [REDACTED]'s sister Ms. [REDACTED] regarding [REDACTED]'s appearance to give testimony this case. [REDACTED] assured Padilla that she would give the subpoena to her brother as soon as he arrived at home. On June 30, 2007, a subpoena was mailed by certified mail return receipt requested and first class mail to [REDACTED]'s home address. (CX 1).

The Assistant Department Advocate further informed the Court that she made several telephone calls to the number [REDACTED] supplied and once spoke to his father.

█████'s father explained that his son is not interested in coming in and does not want to testify. Based on █████'s unavailability, the Department presented his hearsay statements in support of their allegations against the Respondent.

The Interview

█████ was interviewed on June 1, 2005 at the 10 Precinct Station House. █████ told investigators in that interview that he was driving northbound in the center lane on the West Side Highway in a U-Haul truck. While in the vicinity of West 23 Street he "attempted to cross from the center lane into the far right lane and I guess the car [Respondent's] was in my blind spot that I didn't see it that I just crossed and I didn't see any cars in my rear view mirror in my right and I cut the guy off." He stated that the cars did not collide and as he continued to drive "the person was giving me the finger from I (sic) could see it from my side view mirror, from the left, because now he switch over to the center lane. . . I guess in order to avoid hitting me yeah he went to the center lane."

As he continued driving he observed the Respondent pull up next to him and make a hand gesture, "giving me the finger." When asked what was the Respondent saying █████ replied "I see his lips moving and I see his hand sticking out of the window. That's about it." █████ stated that he was cursing, but not at the Respondent; rather, he was cursing because he was mad at cutting the Respondent off.

█████ stated that "next we approached ...we approached some traffic that was ahead of us and he is in the middle lane now and he is trying to pass me, he did pass me, I let him pass me. I guess, you know I told myself forget about it and to let him pass me he'll get on with it. And he passed me and he cut me off, went into the right lane I hit the brakes... [because] he stopped very short." He further explained that the Respondent was

behind him and "then he accelerator (sic) and cut in front of me into the right lane." With traffic slowing in the right lane, the Respondent changed from the right lane into the middle lane. Thinking the Respondent was going to continue on driving he "stayed behind him." Instead the Respondent "just slammed on his brake at that point" causing [REDACTED] to stop short. [REDACTED] further explained that he did not know that "he's going to stop short you know, trying, I don't know that at this point he was he was trying to make me stop, because he was accelerating from, at this point from the far right lane back into the center lane, and so I followed him in order to avoid the traffic that was on the right cause he was accelerating. So he did stop short as soon as I, he seen me that I followed him in order to avoid those few cars that were stopped in the right lane, he stopped short and I stopped behind him." He stated that they stopped at a green light at the corner of the Westside Highway and 23 Street because "all I know is that traffic was still moving. . ."

[REDACTED] stated that the Respondent then exited his vehicle and "as soon as he got out of his car I got out of mine." He stated that the Respondent was wearing a "polo T-shirt" with no jacket and he could not remember the type of pants he was wearing.

[REDACTED] stated as "soon as he got out of his car I got out of my car . . . as soon as he gets out of the car I see a gun... [and he] flashed something at me." [REDACTED] stated that at that point the Respondent stated "what the fuck are you doing? You just cut me off.

Basically that was it. I'm you know, I'm not in the right state of mind at that point. . ."

[REDACTED] stated that he and the Respondent were "just arguing, I can't remember the exact argument...[but he] was responding."

When asked where he saw the gun [REDACTED] responded "It was in his right hand. yeah. He had it on his right hand. He had it down, he didn't point it at me or anything, but he pulled it out from a holster or something and that was the first thing that I noticed. I guess ...that was the first thing that I noticed and he had it down. I don't know if he had it in his passenger seat or something that he just came out of the car with it, I don't know where he came with it from (sic)..." [REDACTED] said that he did not know what the Respondent did with the gun; he "guess[ed] he was putting it back or something.... I took my eyes off of it and I have no idea what he did. I guess he put it back in his holster." [REDACTED] also stated that the Respondent flashed his wallet at him and he saw "something shining... It was silver." [REDACTED] stated that when he saw the gun he "thought this guy is probably a cop."

[REDACTED] stated the two were standing very close to one another and when asked if the Respondent pushed him with both arms he replied "No. Maybe he did, maybe he gave me a little nudge with both." When asked where the Respondent's weapon was at this point in time he stated "Oh, his gun? He didn't, he had his hands free after I seen the gun, so he put it somewhere. The first thing I noticed when he got out of the car was he had his gun in his hand... But he definitely put it back in his holster or something, he had both hands free and maybe a few seconds later and he was cursing and talking to me."

[REDACTED] stated that he did not "believe he [the Respondent] said anything to threaten me. No he didn't say anything threatening." [REDACTED] added that when the Respondent put his hands on him, he "gave him a little nudge, you know like get off of me or something like that." He added that he had to turn his face because the Respondent was "getting in my face" and "spitting a lot." [REDACTED] explained that "as he was talking spit

was coming out of his mouth." He admitted that he considered hitting the Respondent but did not because he "knew that he was a cop."

He also admitted that the Respondent "told me to call the cops," but he told the Respondent "you call the cops, I'm calling my friend." He acknowledged that the Respondent made a call to 911 and he proceeded to call his long time friend to "let him know that [he] was in a situation. I didn't bother to call the cops." When asked why he called his friend he stated it was "just to let him know that I am in this situation." [REDACTED] stated that his friend was a "cop himself" but he did not call the police for [REDACTED]

[REDACTED] stated that he "was not in fear for my life at any point because he did not point it at me. So I knew that he was of some sort of authority that he had a gun on him. But he didn't point it at me. Plus he flashed his badge." When he was again asked to describe where the Respondent put the gun [REDACTED] replied, "He went somewhere with the gun, I didn't see a holster... Where he went with the gun I am not sure, maybe he, oh, you know what, he could have, now that I recall, he could have slid it right here, something holding it or, right in the middle, he lifted his shirt and I believe... The middle of his crotch... Groin area whatever you want to call it, right where you would normally see a guy holding a gun. I do recall something like that, maybe he lifted his shirt and stuck it there or he had a holster strapped around him, I do recall something like that. But I noticed that he lifted his shirt and there was something there, maybe he either put the gun there or he put it against something that was holding it, I don't know... I know that he wasn't pointing it at me, that's what made me take my eyes off the gun."

[REDACTED] summarized the event by acknowledging that their cars had stopped only a matter of inches between their bumpers; the Respondent walked to the bumper of his

truck and was right in his face, "touching noses" and they had words yelling at each other. [REDACTED] stated that the Respondent "did not have a gun in his hand when we were exchanging words."

Once the police arrived at the scene [REDACTED] and the Respondent ceased having any further conversation.

The Respondent's Case

The Respondent offered a report (UF-49) from Deputy Inspector Dennis De Quatro, regarding the investigation of IAB Log # 2005-15474 and was accepted into evidence as Respondents Exhibit (RX) A and the Respondent testified in his own behalf.

Report From Deputy Inspector Dennis De Quatro

De Quatro, who was the Commanding Officer of the 10 Precinct at the time of the incident, along with the assistance of the PBMS-IU conducted an investigation of the incident involving the Respondent and generated a report that summarized the events and allegations made by [REDACTED]. In the report De Quatro stated: "After a review of the evidence gathered as a result of this investigation in its totality, it is the opinion of the undersigned that the evidence is insufficient to adequately prove or disprove the allegations against Officer Cruz (the Respondent). It is apparent to the undersigned that Officer Cruz and Mr. [REDACTED] were both apparently agitated by the actions of the other, however, it is unclear based upon the statements of the individuals involved who was the primary aggressor resulting in a face to face confrontation. Additionally, the statements made by [REDACTED] regarding Officer Cruz's displaying his firearm were illogical,

inconsistent and lacked overall credibility. It is the opinion of the undersigned that if Mr. [REDACTED] did in fact see Officer Cruz's firearm it was as a result of his t-shirt riding up and the weapon being exposed while Officer Cruz exited his vehicle as supported by the statements made by Officer Primrose. Finally, based upon the statements made by both Mr. [REDACTED] and Officer Cruz, the actions of Officer Cruz placing his hand on Mr. [REDACTED] in an effort to create a zone of safety were reasonable, logical and justifiable. The undersign [De Quatro] recommends this matter be closed with the disposition of "Unsubstantiated." (RX A)

The Respondent

The Respondent, a 10-year member of the Department, is currently assigned to Transit District 2. He testified that on June 1, 2005, after completing a 0705 x 1540 tour he was driving home on the West Side Highway in the right lane with traffic flowing at a "medium" pace. He stated that he first observed a U-Haul truck (driven by [REDACTED]² "cutting cars off" with the truck "coming in and out" from "left to right, now back in the left." He stated the U-Haul truck drove "from the left lane all the way over, pass[ing] both lanes right in front of me." He stated that he had to step on the brakes to avoid being struck by the U-Haul truck when it cut in front of him. The Respondent testified that he pulled up next to the U-Haul truck, rolled down his window and stated to [REDACTED] "Slow it down... you almost hit me with the truck." He denied making any obscene gestures towards [REDACTED] at any point during the incident.

The Respondent proceeded to pass the U-Haul truck and position his car in the middle lane as he approached the intersection of West 24 Street and the West Side

² It was subsequently determined that the driver of the U-Haul truck was [REDACTED]

Highway. He was the first car in his lane at the intersection and came to a stop because the traffic signal was red. He then observed in his rear view mirror the U-Haul truck "coming up on me fast" and he thought that it was going to "slam right into me." When the U-Haul truck came to a stop, the Respondent observed [REDACTED] in his rear view mirror. [REDACTED] exit his vehicle and approach the Respondent who was still seated in his vehicle. When [REDACTED] walked to the driver's side of the Respondent's vehicle he cursed at the Respondent. The Respondent stated that he then exited his vehicle and removed his shield from his right front pocket with his right hand and displayed it to [REDACTED] who was one to two feet away from him. The Respondent then identified himself as a police officer and ordered [REDACTED] to "stand back." He stated that [REDACTED] not believing that he was a police officer, pushed him stating "you're no police officer." The Respondent again told [REDACTED] that he was a police officer and to "back up." He also told [REDACTED] that he was going to call 911 at which point [REDACTED] stated, "I will call someone higher than the police." The Respondent understood that to mean that [REDACTED] was going to call someone outside of the Police Department and of a higher authority.

The Respondent admitted that he was armed at the time and that his firearm may have been visible when he removed his shield from his pocket. When questioned by the court as to where the Respondent had his gun he stated that he kept it holstered inside his pants near his front right pocket in close proximity to his shield.

Respondent testified that he made a 911 call at the scene of the incident and recalled stating to the 911 operator that he was a police officer and that he was armed and was having a dispute with another driver. He also gave his location and his description to

the 911 operator and that he had his firearm "at his side." (DX 1)³ When questioned as to what he meant by "at his side" the Respondent explained that he wanted the 911 operator to know that he was armed and that his firearm was "on my person, my side." He went on to explain that he wanted the responding police to know who he was once they arrived. The Respondent denied that he ever took his gun out from his pants or out of the holster or that he pointed his gun at [REDACTED]. When asked if he was ever threatened by [REDACTED] the Respondent stated that [REDACTED] said he was going to "kick my ass, fuck me up." Once the responding officers arrived on the scene the Respondent stated they identified both parties and directed them to pull their vehicles off to the side of the road.

When the Respondent was asked why he exited his vehicle when he saw [REDACTED] get out of his he explained that he did not know what [REDACTED]'s intentions were. He stated he felt like a "sitting duck" and had no choice but to get out because [REDACTED] "was by [his] passenger door." When asked why he did not drive forward when he saw [REDACTED] coming towards him, he said he couldn't due to traffic at the intersection.

On cross-examination, the Respondent denied displaying his firearm at any point during the dispute. He acknowledged that his vehicle was almost struck twice by [REDACTED]'s U-Haul truck, but maintained he was not angered by the events. He denied that he could have called 911 for assistance from inside his vehicle because he did not know if [REDACTED] was carrying a weapon. He stated that once he exited his vehicle he displayed his shield and identified himself as a police officer. He denied that he shoved [REDACTED] first and only pushed him after [REDACTED] pushed him. He added that he only pushed [REDACTED] to gain

³ The Respondent's conversation during his 911 call was in sum and substance: I'm Police Officer Cruz, Transit District #2, on the corner of 12 Avenue and 24 Street. My badge number is 30227. A U-Haul driving erratically tried to cut me off and he wants to fight me now. I pulled my badge, had my gun at my side. During the call he spoke to someone saying "go lean on your car." He further told the operator "He's okay now; he realizes that I'm a cop now." (DX 1)

space between the two of them. He also denied saying to [REDACTED] "get the fuck off my car I'll bust you in your ass."

On re-direct examination, the Respondent was asked what he was feeling when he saw [REDACTED] exit his vehicle and approach him. He replied he was scared and nervous and in disbelief that [REDACTED] was getting out of his car and was coming after him.

FINDINGS AND ANALYSIS

The Respondent is charged with having wrongfully engaged in conduct prejudicial to the good order, efficiency and discipline of the Department in that on June 1, 2005 at about 1550 hours, while off-duty, he became engaged in an off-duty traffic dispute wherein he exited his vehicle and "confronted" [REDACTED] the driver of the other vehicle.

The Assistant Department Advocate, (Advocate) during her opening statements, explained what the Department means by "confronted." The Advocate stated that the evidence will show "by confrontation" that [REDACTED] accidentally merged into the lane where the Respondent's Nissan was and cut him off. According to the Advocate, the Respondent then came around in another lane and as he was passing [REDACTED]'s U-Haul truck he made obscene gestures and was yelling at [REDACTED] through his rolled-up window. The Advocate further informed the Court that as [REDACTED] continued "to drive in a lane," the Respondent merged in front of his vehicle causing him to stop short. Both individuals then simultaneously exited their vehicles and according to the Advocate the Respondent exited his car holding his shield in his right hand and a black gun in his left hand. The Respondent then began cursing at Khalil and wanted to know why Khalil had cut him off.

from what he could see through his "side view mirror" the Respondent gave him the "finger" while switching over to the center lane to avoid hitting [REDACTED]. He also stated that when the Respondent pulled up along side of him, he claimed that the Respondent cursed at him and gave him the finger and he knew this because he saw his "lips moving and ...his hand sticking out the window."

[REDACTED] also admitted that he was cursing, but excused his cursing because he claimed he was cursing at himself for cutting off the Respondent. He stated that he allowed the Respondent to pass him, but then claimed that the Respondent cut him off while hitting the brakes and stopping short. His excuse for being behind the Respondent was that he did not know that the Respondent was trying to make him stop and the only reason he decided to follow behind the Respondent after cutting him off was "to avoid the traffic that was on the right cause he [Respondent] was accelerating."

The most unconvincing of [REDACTED]'s hearsay statements, however, were those involving the Respondent pulling a gun on him after they exited their vehicles. [REDACTED] first told the investigator that when the Respondent exited his vehicle the Respondent was wearing a polo T-shirt and he flashed his wallet with something shining in it which made him think that he was probably a cop. Over the course of the interview, however, he gave an unconvincing account concerning the gun that began with: "He had it on his right hand. He had it down, he didn't point it at me or anything, he pulled it out from a holster or something and that was the first thing that I noticed. I guess that was the first thing that I noticed and he had it down." Then he changed his position about the gun and stated that he did not know if he had it [the gun] in his passenger seat "or something. I don't know where he came with it." He stated that he had no idea what the Respondent

The Advocate also indicated that there was shoving between both individuals as a result of this confrontation.

At the outset it is not in dispute that the Respondent and [REDACTED] became embroiled in a traffic dispute. They were each traveling in their vehicles on the West Side Highway and while in the vicinity of 24 Street their vehicles came in close proximity to each other which gave rise to the allegations against the Respondent in this case. What is in dispute is whether the Respondent displayed his weapon, cursed a [REDACTED] and became excessively physical with him after exiting his vehicle.

The complainant, [REDACTED], after making several allegations against the Respondent was expected to appear and give testimony at trial as to what occurred between him and the Respondent during their incident on the Westside Highway. After the Department made numerous attempts over a two month period to contact [REDACTED] he made it abundantly clear that he had no intention of appearing in court and fulfilling his obligation in this case. As a result, this Court was not able to evaluate his testimony and observe his demeanor during direct and cross examination to determine the credibility of his allegations. Rather, the Court was left with [REDACTED]'s prior unsworn hearsay statements to a Department investigator.

After reviewing his interview it appeared to this Court that [REDACTED] was unsure of himself in response to questions from the investigator, in that his answers were contradictory, vague and unconvincing. He started off by admitting that he "cut the guy [Respondent] off" when he attempted to cross from the center lane to the far right lane. He excused himself for this reckless act of driving by saying that the Respondent was in his "blind spot" and he did not see him. Once in front of the Respondent, he stated that

did with the gun, that he took his eyes off of it and guessed that "he put it back in his holster." When he was finally asked where the gun was during the incident he stated in a somewhat surprised response, "Oh, his gun? He didn't, he had his hands free after I seen the gun, so he put it somewhere. He went somewhere with the gun, I didn't see a holster. Where he went with the gun I am not sure, maybe he, oh, you know what, he could have, now I recall, he could have slid it right here, something holding it or, right in the middle, he lifted his shirt and I believe...the middle of his crotch...groin area whatever you want to call it, right where you would normally see a guy holding a gun. I do recall something like that, maybe he lifted his shirt and stuck it there or he had a holster strapped around him...But I noticed that he lifted his shirt and there was something there maybe he either put the gun there or he put it against something that was holding it, I don't know...I know that he wasn't pointing it at me."

He added that the Respondent did not say anything threatening to him and that he was not in fear for his life. When they were standing very close he denied that the Respondent pushed him, rather "maybe he gave me a little nudge..." [REDACTED] admitted that he considered hitting the Respondent, but changed his mind because he was a cop.

The Respondent's testimony, in contrast, was a straight forward account of how [REDACTED] after driving erratically from one lane to another, cut him off by driving across two lanes in his U-Haul truck nearly hitting the Respondent's car. The Respondent admitted to pulling up along side [REDACTED], rolling down his window and telling him to slow down. He denied making any obscene gestures towards [REDACTED]

When the Respondent passed [REDACTED] he observed him "coming up on me fast" from behind like he was going to "slam right into me." When the Respondent stopped at

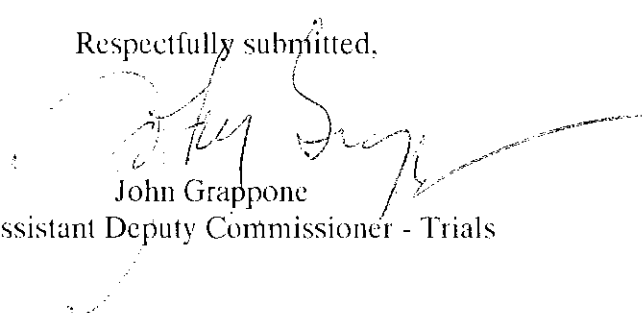
the red light he saw [REDACTED] through his rear view mirror exit the U-Haul truck and approach the Respondent's vehicle. The Respondent, who was wearing a T-shirt, exited his vehicle and removed his shield from his right front pants pocket and displayed it to [REDACTED] and identified himself as a police officer. In doing so the Respondent admitted that he had his gun holstered inside his pants near his right front pocket in close proximity to his shield. He further admitted that his firearm may have been visible when he removed his shield from his pocket. He was equally candid about not pushing [REDACTED] until after he was pushed and did so only to create space between them because [REDACTED] was standing too close to him.

In this Court's opinion nothing in [REDACTED]'s hearsay statements refutes the Respondent's straight forward testimony. The longer [REDACTED]'s interview progressed the more it became apparent that the Respondent's gun was where he said it was, inside a holster inside his pants. This Court is also convinced that it was [REDACTED] who cut off the Respondent through his aggressive driving and his statements convinced this Court that he remained aggressive throughout their encounter from when he approached the Respondent's vehicle to the point where he was contemplating hitting the Respondent, but refrained from doing so after he realized that he was a police officer.

Furthermore, during the anonymous caller's brief call he talked about seeing a gentleman pull a gun on another gentleman, but it is unclear where he saw the gun. Did he see it in the Respondent's waistband area, or in his hand? He could not have seen the gun pointed at [REDACTED] because [REDACTED] adamantly stated that the gun was never pointed at him. Consequently, without further questioning of this caller his eyewitness account does not persuade this Court that the gun was not where the Respondent said it was.

Based on the foregoing, I find the Respondent Not Guilty as charged.

Respectfully submitted,


John Grappone
Assistant Deputy Commissioner - Trials

